"Attachment in the following sentence complaint has not been attached."

REPUBLIC OF THE PHILIPPINES
DEPARTMENT OF JUSTICE
OFFICE OF THE CITY PROSECUTOR
PARAÑAQUE CITY

TIGER RESORT, LEISURE AND ENTERTAINMENT, INC.,
Complainant,

I.S. NO. _____

- versus –

For: Libel under Article 353, in relation to Article 355, of the Revised Penal Code and other applicable offenses

STEPHEN WYNN,
Respondent.

x----------x

COMPLAINT-AFFIDAVIT

Complainant **TIGER RESORT, LEISURE AND ENTERTAINMENT, INC.,** as represented by its duly authorized officer, **Hajime Tokuda**, Japanese, of legal age, and with office address at the Ground Floor, Burgundy McKinley Place, Pacific Avenue, Asiaworld City Boulevard, Parañaque City, after having been sworn in accordance with law, hereby states:

1. Complainant TIGER RESORT, LEISURE AND ENTERTAINMENT, INC. ("**Tiger**") is a corporation duly organized and existing under the laws of the Philippines, with principal address at the Ground Floor, Burgundy McKinley Place, Pacific Avenue, Asiaworld City Boulevard, Parañaque City. Complainant Tiger is represented herein by its [position], HAJIME TOKUDA, pursuant to the Board Resolution/Secretary's Certificate attached hereto as **Annex A**.

1.1. Complainant Tiger may be served with orders, notices and processes through its counsel, Poblador Bautista and Reyes Law Offices, with address at the 5th Floor, SEDCCO 1 Building, 120 Rada corner Legaspi Streets, Legaspi Village, Makati City.

2. Respondent STEPHEN A. WYNN ("**Wynn**") is an American citizen, of legal age, with office address at 3131 Las Vegas Boulevard, South, Las Vegas, Nevada 89109, U.S.A. Preliminary investigation may proceed against him, even if he is not a resident of this country, pursuant to Section 3 (d) of Rule 112 of the Rules of Criminal Procedure, which provides that "if the respondent cannot be subpoenaed, … the investigating officer shall resolve the complaint based on the evidence presented by the complainant."

Statement of Facts

3. Complainant Tiger is a Philippine corporation whose primary corporate purpose is "to acquire, own, maintain, operate and/or manage hotels (city and resort), inns, apartments, private clubs, pension houses, convention halls, lodging houses, restaurants, cocktail bars …, online gambling, casinos, gambling clubs, other similar recreational or amusement places …" A copy of its Amended Articles of Incorporation is attached as **Annex B** hereof.

4. Complainant Tiger is one of the companies of KAZUO OKADA ("**Mr. Okada**"), a Japanese national. Mr. Okada, through various companies, has extensive business interests in the field of gaming and casino in Japan, the United States, the Philippines, and other countries. Among his companies are UNIVERSAL ENTERTAINMENT CORPORATION ("**UEC**"), a Japanese corporation; ARUZE USA, INC. ("**Aruze**"), a Nevada corporation; and herein complainant, Tiger. Complainant Tiger is a wholly-owned subsidiary of Aruze (see Tiger's 2012 General Information Sheet, attached as **Annex B-1** hereof), but Aruze's shareholdings have been transferred to another UEC subsidiary, Universal Entertainment Hong Kong Limited, subject to the completion of registration requirements.

5. In 2000, Mr. Okada contributed as much as US$380 million to a company established by respondent Wynn, VALVINO LAMORE, LLC ("**Valvino**"). This company is the predecessor of WYNN RESORTS, LIMITED ("**Wynn Resorts**"). With his contribution, Mr. Okada thereby became an equal investor with the respondent in Valvino/Wynn Resorts. Wynn Resorts, through subsidiaries, operates resort casinos in Las Vegas, Nevada, and in Macau, China.

5.1. Mr. Okada, through Aruze and UEC, owns approximately 19.66% of the stock of Wynn Resorts. These shares were unlawfully and forcibly redeemed from him in an intra-corporate dispute that is currently being questioned in the courts of Nevada, USA.

5.2. Respondent is also a substantial stockholder of Wynn Resorts and its Chairman of the Board of Directors and Chief Executive Officer (CEO). As such, he has the most dominant voice and influence in the management of Wynn Resorts.

5.3. Attached as **Annex C** hereof is a copy of the Complaint filed by Mr. Okada and UEC, among others, against Mr. Wynn and Wynn Resorts, among others, before the Tokyo District Court ("**Japan Complaint**"). The said Japan Complaint discusses matters in relation to Valvino and Wynn Resorts in relation to Mr. Okada and Mr. Wynn.

6. Sometime in 2007, Mr. Efraim Genuino, former Chairman of the Philippine Amusement and Gaming Corporation ("**PAGCOR**"), visited Japan and invited Japanese companies to invest in casino and resort projects in the Philippines. Mr. Okada began exploring the idea of investing and building a casino and hotel resort project in the Philippines. He invited respondent to join him in the project, seeing it as an opportunity for Wynn Resorts to make money.

7. In the beginning, respondent appeared to be interested in the Philippine project. However, he later changed his mind and said that Wynn Resorts was not interested in pursuing the project.

8. Complainant Tiger became Mr. Okada's investment vehicle for his project in the Philippines. In 2008, PAGCOR issued to complainant Tiger a *Provisional License* to develop, establish, and operate casinos within the Bagong Nayon Pilipino Manila Bay Tourism City.

9. Meanwhile, a dispute arose between Mr. Okada and respondent involving, among others, Mr. Okada's opposition to an anomalous donation pledged by Wynn Macau Limited, a Macau subsidiary of Wynn Resorts in Macau.

10. In 2011, Wynn Macau Limited pledged to donate a total of US$135,000,000 to the "University of Macau Development Foundation" over a 12-year period to 2022. This would match the duration of the gaming concession granted to 2022 by the Macau government to Wynn Macau Limited in Macau. The said foundation is a financial organization which consists of government officials and casino business operators in Macau.

11. During a meeting of the Wynn Resorts Board of Directors, Mr. Okada vehemently objected to the donation. He also filed a petition with a Nevada state court questioning the approval of the donation. The case caught the attention of the U.S. Securities and Exchange Commission which commenced an "informal inquiry" into the matter.

12. Mr. Okada's actions did not sit well with respondent, as the latter feared that an investigation would reveal that the purpose for the huge donation in Macau was improper and illegal. This prompted respondent Wynn to use the Philippine project as a pretext to eliminate and take over Mr. Okada's stockholdings (through UEC and Aruze), and remove him from Wynn Resorts.

13. During a meeting of the Wynn Resorts Board of Directors in November 2011, respondent suddenly made false and malicious claims that the Philippines is "awash in corruption" and that there were improprieties in Mr. Okada's Philippine project.

14. Mr. Okada immediately defended the Philippines. He provided the Board members with materials showing that the Philippines has exceeded India as the top outsourcing country; it is the only English-speaking society in Asia; top corporations from the USA and Japan have opened factories and businesses in the Philippines; the economic growth rate in the Philippines exceeds 8%; it is a strong country that is expected to experience high growth in the future; and the like. Mr. Okada further argued that the Philippines has been properly governed as a democratic country by President Aquino, whose father was a democratic activist, under a strong anti-corruption campaign.

15. The Board meeting determined that Mr. Okada and his companies must have engaged in corrupt activities in connection with the Philippine project, based on the supposition that "the Philippines is a corrupt country" and further

determined that Mr. Okada was to be dismissed from his position as Vice Chairman of Wynn Resorts.

16. Respondent thereafter hired Mr. Louis Freeh and his firm, Freeh Sporkin & Sullivan LLP ("**Freeh LLP**"), to conduct an investigation of the alleged corrupt activities of Mr. Okada and his companies. The investigation was clearly an afterthought and was commissioned for the purpose of providing justification for the baseless findings of the Compliance Committee.

17. Mr. Freeh came up with a report[1] (the "**Freeh Report**") which falsely claimed, among others, that "Mr. Okada, his associates and companies appear to have engaged in a longstanding practice of making payments and gifts to his two (2) chief gaming regulators at [PAGCOR], who directly oversee and regulate Mr. Okada's Provisional Licensing Agreement to operate in that country. Since 2008, Mr. Okada and his associates have made multiple payments to and on behalf of these chief regulators, former PAGCOR Chairman Efraim Genuino and Chairman Cristino Naguiat (his current chief regulator), their families and PAGCOR associates, in an amount exceeding US 110,000. At times, Mr. Okada, his associates and companies have consciously taken active measures to conceal both the nature and amount of these payments…"[2]

A copy of the Freeh Report is attached as **Annex D** hereof.

18. Respondent maliciously caused copies of the Freeh Report to be given to the press, which enabled several newspapers to publish the contents of the Freeh Report.

19. On 19 February 2012, Wynn Resorts, under the direction and control of respondent, maliciously issued a <u>global</u> press release, published on its website, containing the following libelous accusations against Mr. Okada and his associates and companies, i.e., complainant Tiger, UEC, and Aruze (the "**Press Release**"):

a) "Freeh's investigators uncovered and documented more than three dozen instances over a three-year period in which Mr. Okada and his associates engaged in improper activities for their own benefit in apparent violation of U.S. anti-corruption

[1] **Annex D** hereof.
[2] Freeh Report (Annex D), pages 1-2.

laws and gross disregard for the Company's Code of Conduct. These troubling discoveries include cash payments and gifts totaling approximately $110,000 to foreign gaming regulators."

b) "'Mr. Okada and his associates and companies appear to have engaged in a longstanding practice of making payments and gifts to his two chief gaming regulators at the Philippines Amusement and Gaming Corporation (PAGCOR), who directly oversee and regulated Mr. Okada's Provisional Licensing Agreement to operate in that county,' according to the Freeh Report. The report further stated that Mr. Okada and his associates have 'consciously taken active measures to conceal both the nature and amount of these payments."

c) "Based on the Freeh Report, presented to the Wynn Resorts Board of Directors on February 18, 2012 the Board determined that Aruze USA, Inc., Universal Entertainment Corporation and Mr. Okada are 'unsuitable' under the provisions of the Company's Articles of Incorporation."

d) "Pursuant to the finding of 'unsuitability,' the Board had redeemed Aruze USA, Inc.'s 24 million Wynn Resorts' shares."

A copy of the Press Release printed from a computer located in the Philippines is attached hereto as **Annex E**.

20. The Press Release was published by respondent on the website of Wynn Resorts with the intent that it be accessed in any part of the world including the Philippines. As of the time of preparation of this Complaint-Affidavit, the Press Release remains posted on Wynn Resorts' website.

21. The defamatory statements or imputations made by respondent against Mr. Okada, complainant Tiger, UEC and Aruze, are all malicious and false. Attached hereto as **Annexes F to Q** are news articles quoting interviews with current PAGCOR Chairman Cristino Naguiat and other Philippine government officials denying the claims made in the Freeh Report. The news articles show that there was no law violated by Mr. Okada, complainant Tiger, UEC, Aruze, or Chairman Naguiat, and that the PAGCOR officials were cleared of any wrongdoing by the House Committee on Games and Amusements.

21.1. The falsity of the defamatory statements is further discussed and demonstrated in the Japan Complaint (Annex C, *supra*). As shown therein, there is no basis to the allegation of violations of anti-corruption

laws or other improper or illegal activities. Mr. Okada's companies also have strict regulations prohibiting bribery, which are being firmly enforced.

22. The Freeh Report, which was heavily publicized in the Press Release, is clearly a one-sided, inaccurate, and unreliable report. Mr. Freeh improperly and hastily conducted his investigation in his bid to provide respondent with some colorable basis to kick out Mr. Okada from Wynn Resorts and seize his stockholdings therein.

22.1. Mr. Freeh subjected Mr. Okada to questioning about allegedly improper entertainment expenses in favor of PAGCOR officials and their families in Macau, without allowing Mr. Okada to prepare for the interview and gather information from his subordinates who were the ones actually in charge of the day-to-day operations of the business. Mr. Freeh ignored the fact that Mr. Okada, being the Chairman and a Director of UEC, was not responsible for the execution of its day-to-day operations and had no knowledge of the matters inquired into by Mr. Freeh. At the time, UEC was a company with committees, and directors did not conduct day-to-day business operations.

22.2. Mr. Okada informed Mr. Freeh that he would submit some of the information requested by the latter at a later date, after confirmation with his subordinates. However, after only three (3) days and without waiting for such information, Mr. Freeh rushed the Freeh Report and submitted the same to the Wynn Resorts Board of Directors, without allowing Mr. Okada to provide the necessary information and corrections. Clearly, the Freeh Report was inaccurate and incomplete and prepared with undue haste.

22.3. The serious flaws and defects in the Freeh investigation and the Freeh Report are further discussed in the Japan Complaint (Annex C, *supra*). As shown therein, the methods used by Mr. Freeh were patently unfair to Mr. Okada and deprived him of his right to be fully heard on the matter. Mr. Freeh's conclusions were also tentative, incomplete and uncertain, indicating that they lack any solid basis for such reckless and malicious accusations.

23. The foregoing facts clearly reveal the plot by respondent to publicly and maliciously attack the person and character of Mr. Okada, complainant Tiger, UEC and Aruze and to tarnish their reputation in the eyes of the public. This was done to justify the forcible redemption and take-over of Aruze's 19.66% stockholdings in Wynn Resorts, at an unreasonably discounted redemption price that is payable in 10 years.

24. Due to respondent's illegal acts, Mr. Okada, complainant Tiger, UEC and Aruze suffered serious damage to their business, reputation and credibility. The stock price of UEC declined immediately after the issuance of the Press Release. (See Japan Complaint, Annex C, *supra*.)

25. It must also be noted that respondent's actions, including the issuance of the Press Release, constitute a public, malicious and direct attack, not only on the person and character of Mr. Okada, complainant Tiger, UEC and Aruze, but also on the integrity of the Republic of the Philippines, President Benigno Aquino, Jr. and Philippine government officials. Respondent recklessly and maliciously imputed in public that the Philippines is a corrupt country.

<u>The Elements of the Crime Committed</u>

26. Respondent's act of publicly imputing corruption against Mr. Okada, complainant Tiger, UEC and Aruze constitutes the crime of libel as defined in Article 353 of the Revised Penal Code ("RPC"), thus:

> "Art. 353. *Definition of Libel.* — A libel is a public and malicious imputation of a crime, or of a vice or defect, real or imaginary, or any act, omission, condition, status, or circumstance tending to cause the dishonor, discredit, or contempt of a natural or juridical person, or to blacken the memory of one who is dead."

27. The elements of libel are as follows:[3]

a) Imputation of a discreditable act or condition to another;
b) Publication of the imputation;

[3] Daez v. Court of Appeals, G.R. No. 47971, 31 October 1990, 191 SCRA 61, 67; Binay vs. Secretary of Justice, G.R. No. 170643, September 8, 2006.

c) Identity of the person defamed; and

d) Existence of malice.

All of these elements are present in this case.

First Element: Imputation of a discreditable act or condition to another

28. Under Article 353 of the Revised Penal Code, there must be an "imputation of a crime, or of a vice or defect, real or imaginary, or any act, omission, condition, status, or circumstance tending to cause the dishonor, discredit, or contempt of a natural or juridical person."

29. As explained above, respondent, through the Press Release, imputed that Mr. Okada and his companies, including complainant Tiger, UEC, and Aruze, had engaged in corrupt activities with the gaming authority officials in the Philippines:

> "Freeh's investigators uncovered and documented more than three dozen instances over a three-year period in which Mr. Okada and his associates engaged in **improper activities for their own benefit in apparent violation of U.S. anti-corruption laws** and gross disregard for the Company's Code of Conduct. These troubling discoveries include **cash payments and gifts totaling approximately $110,000 to foreign gaming regulators**.
>
> "'**Mr. Okada and his associates and companies appear to have engaged in a longstanding practice of making payments and gifts to his two chief gaming regulators at the Philippines Amusement and Gaming Corporation (PAGCOR)**, who directly oversee and regulated Mr. Okada's Provisional Licensing Agreement to operate in that county,' according to the Freeh Report. The report further stated that Mr. Okada and his associates have 'consciously taken active measures to conceal both the nature and amount of these payments."

30. Such imputations of corrupt activities are clearly discreditable and dishonorable.[4] They are an affront to the reputation, honor, and integrity of Mr. Okada, complainant Tiger, UEC and Aruze. Indeed, respondent's imputations are so dishonorable that some lawmakers were deeply offended and called for a

---

[4] *See* Daez v. Court of Appeals, G.R. No. 47971, 31 October 1990, 191 SCRA 61, involving an imputation of corruption.

"ban" against respondent from the country.[5]

Second Element: Publication of Imputation

31. For purposes of libel, the element of publication simply means the **communication of the defamatory matter to some third person or persons**.[6] "Publication means 'to make public; **to make known to people** in general; to bring before the public.' Specifically put, publication in the law of libel means the making known of the defamatory matter, after it has been written, to some person other than the person of whom it is written."[7]

32. In this case, the defamatory Press Release was certainly made known to the public as it was released and posted on the website of Wynn Resorts, with the intent to make it accessible, as it was in fact made accessible to other countries, including the Philippines. By its very nature as a "Press Release", it was intended to be disseminated and propagated. Since the defamatory material is posted on the website, it is accessible all over the world, including the Philippines. It is therefore punishable here.

33. Publication via the internet is still publication for purposes of libel. What is essential is that the defamatory matter be <u>communicated or made known</u>, regardless of the means by which it is communicated or made known. Article 355 penalizes "libel committed by means of writing, printing, lithography, engraving, radio, phonograph, painting, theatrical exhibition, cinematographic exhibition, ***or any similar means***." While the ***internet*** is not expressly mentioned in Article 355, it may be considered as "similar means" to the other medium mentioned therein. Like them, the internet is a medium used for communicating to the general public. Relatedly, jurisprudence holds that libel can be committed by ***television***, although television is not expressly mentioned among the means specified in Article 355. Television qualifies under the general provision "or any similar means."[8] In *U.S. vs. Go Chico*,[9] the Supreme Court held

---

[5] *See* article entitled "*Lawmakers rally round Pagcor, move to ban Wynn*," Philippine Daily Inquirer, February 28, 2012 (Annex __ hereof).
[6] Luis B. Reyes, The Revised Penal Code, Vol. II (14th Ed.), page 924, citing People vs. Atencio, CA-G.R. Nos. 11351-R to 11353-R, December 14, 1954.
[7] Alonzo vs. Court of Appeals, G.R. No. 110088, February 1, 1995.
[8] Luis B. Reyes, The Revised Penal Code, Vol. II (14th Ed.), page 951, citing People vs. Casten, CA-G.R. No. 07924-R, December 13, 1974.
[9] 14 Phil. 128 (1909).

that statutes, including penal ones, must be reasonably construed to give meaning to the legislative intent:

> "The statute, then, being penal, must be construed with such strictness as to carefully safeguard the rights of the defendants and at the same time **preserve the obvious intention of the legislature.** x x x
>
> "It is said that **notwithstanding this rule (that penal statutes must be construed strictly) the intention of the lawmakers must govern in the construction of penal as well as other statutes.** This is true, but this is not a new, independent rule which subverts the old. It is a modification of the known maxim and amounts to this — that **though penal statutes are to be construed strictly, they are not to be construed so strictly as to defeat the obvious purpose of the legislature.** (U.S. vs. Wiltberger, 5 Wheat., 76; Taylor vs. Goodwin, L.R. 4, Q.B. Div., 228.)
>
> "In the latter case it was held that under a statute which imposed a penalty for '*furiously driving any sort of carriage*' a person could be convicted for immoderately *driving a bicycle*.
>
> "It is presumed that the legislature intends to impart to its enactments **such a meaning as will render them operative and effective, and to prevent persons from eluding or defeating them.** Accordingly, in case of any doubt or obscurity, the construction will be such as to carry out these objects."

Similarly, in *People vs. Manantan*,[10] it was held that "[t]he strict construction of a criminal statute does not mean such construction of it as to deprive it of the meaning intended. Penal statutes must be construed in the sense which best harmonizes with their intent and purpose."

34. In libel, the gravamen of the offense is the defamation or the injury committed against a person's honor or reputation. This is the evil that the legislature sought to punish. The means used to defame or injure reputation is secondary.

35. The 2010 case of *Bonifacio vs. RTC Makati, Branch 149*[11] involved libel committed through the internet where, as in this case, defamatory materials were posted on a website. The Supreme Court ruled that the venue for a libel case is "limited to only either of two places, namely: 1) where the complainant actually **resides** at the time of the commission of the offense; or 2) where the

---

[10] G.R. No. L-14129, July 31, 1962.
[11] G.R. No. 184800, May 5, 2010.

alleged defamatory article was **printed and first published**." The prosecution chose the *second* option, on the theory that the place where the website was first accessed by the offended party is the place of first publication. The Supreme Court rejected the said position. By clear implication, however, venue for internet libel may still be laid using the *first* option: the place "where the complainant actually resides at the time of the commission of the offense." (Applying this to the present case, the venue of a libel action by complainant Tiger may be laid in Parañaque City, where Tiger has its residence or principal office as stated in its Amended Articles of Incorporation.[12])

36. It is notable that in the aforementioned *Bonifacio* case, the Supreme Court never ruled out that libel can be committed by means of the internet.

37. In fact, the recent enactment of Republic Act (RA) No. 10175, or the "Cybercrime Prevention Act of 2012," confirms that libel under the Revised Penal Code may be committed through a computer system. RA 10175 increases the penalty for libel committed through the internet by making it one degree higher than that provided in the Revised Penalty Code. RA 10175 pertinently provides:

> "SEC. 4. *Cybercrime Offenses.* — The following acts constitute the offense of cybercrime punishable under this Act:
>
> x x x
>
> (c) Content-related Offenses
>
> x x x
>
> (4) Libel — The unlawful or prohibited acts of **libel** as defined in Article 335 of the Revised Penal Code, as amended, **committed through a computer system or any other similar means** which may be devised in the future."
>
> x x x
>
> "SEC. 6. All crimes defined and penalized by Revised Penal Code, as amended, and special laws, if committed by, through and with the use of information and communications technologies shall be covered by the relevant provisions of this Act. *Provided*, That **the penalty to be imposed shall be one (1) degree higher than that provided for by the Revised Penal Code**, as amended and special laws, as the case may be."

---

[12] Annex B hereof.

Section 4(c)(4) and Section 6 quoted above in fact clearly imply that there is "libel as defined in Article 335 of the Revised Penal Code" and "crimes defined and penalized by Revised Penal Code … through and with the use of information and communications technologies." RA 10175 operates only to increase the penalty for such crimes as provided in the Revised Penal Code.

38. RA 10175 further clarifies that the Philippines has territorial jurisdiction over crimes committed by means of the internet or computer system, as long as one of the elements of the offense is committed in the Philippines or when the person damaged is in the Philippines, thus:

> "SEC. 21. *Jurisdiction.* — The Regional Trial Court shall have jurisdiction over any violation of the provisions of this Act including any violation committed by a Filipino national regardless of the place of commission. **Jurisdiction shall be if any of the elements was committed within the Philippines** or committed with the use of any computer system wholly or partly situated in the country **or when by such commission any damage is caused to a natural or juridical person who, at the time the offense was committed, was in the Philippines.** x x x"

39. It is therefore clear that Philippine courts have jurisdiction over the libel committed by respondent since the element of damage took place in the Philippines, where complainant Tiger is incorporated and where it holds its place of business. Since complainant Tiger is a Philippine corporation doing business in the Philippines, a libel committed against it injures its reputation in the Philippines. Damage (in the form of discredit or dishonor or injury to reputation) is thus suffered in the Philippines, and the Philippine legal system therefore has territorial jurisdiction over the offense.

40. While the implementation of RA 10175 was put on hold by the Supreme Court's issuance of a Temporary Restraining Order, the Primer on Cybercrime issued by the Department of Justice on 26 November 2012 provides that "as of the moment, cybercrime-related cases are dealt with using existing laws." This means that internet libel may be "dealt with" or prosecuted under the existing provisions of the RPC on libel.

Third Element: Identity of Person Defamed

41. It is settled that "in order to maintain a libel suit, it is essential that the victim be ***identifiable*** although it is ***not necessary that he be named***."[13] Complainant Tiger, while not named in the defamatory Press Release, is clearly identifiable therein. The Press Release states:

> "'**Mr. Okada and his associates and companies** appear to have engaged in a longstanding practice of making payments and gifts to his two chief gaming regulators at **the Philippines Amusement and Gaming Corporation (PAGCOR)**, who directly oversee and regulated Mr. Okada's **Provisional Licensing Agreement to operate in that county,**' according to the Freeh Report. The report further stated that Mr. Okada and his associates have 'consciously taken active measures to conceal both the nature and amount of these payments."

42. The foregoing mentions "Mr. Okada and his associates and companies" in connection with PAGCOR and the "Provisional Licensing Agreement" to operate in the Philippines. Clearly, complainant Tiger is being referred to because it is the company of Mr. Okada in the Philippines that was granted by PAGCOR with a Provisional License to operate in the Philippines.

Fourth Element: Existence of Malice

43. Article 354 of the Revised Penal Code provides that "Every defamatory imputation is presumed to be malicious, even if true, if no good intention and justifiable motive for making it be shown x x x" In other words, when the imputation is defamatory (as in this case), the prosecution need not even prove malice on the part of the respondent, because the law presumes that such defamatory imputation is malicious ("*malice in law*"). "No evidence *aliunde* need be adduced to prove it [i.e., malice]. x x x [T]he burden is upon the defendant to overcome the legal inference of malice."[14]

44. In this case, malice is not only presumed from the defamatory nature of respondent's imputations; it is also evident from the circumstances of the case. In other words, there is not only *malice in law* (which is sufficient in itself); there is also *malice in fact*. "[M]alice in fact is a positive desire and

---

[13] Borjal vs. Court of Appeals, G.R. No. 126466, January 14, 1999. See also Corpus vs. Cuaderno, Sr. (16 SCRA 807)
[14] People vs. Monton, G.R. No. L-16772, November 30, 1962.

intention to annoy and injure. It may denote that the defendant was actuated by ill will or personal spite. It is also called express malice, actual malice, real malice, true malice, or particular malice."[15]

45. As shown above, respondent's actions were prompted by ill-will, spite, and ulterior motives. They were deliberately done to tarnish the reputation of Mr. Okada and his companies, including complainant Tiger, as part of a grand scheme to forcibly redeem and take over Mr. Okada's stockholdings in Wynn Resorts, remove him from the Board of Directors of Wynn Resorts, and prevent further investigation into the anomalous US$135 million donation made by Wynn Resorts to the University of Macau Development Foundation.

46. Based on all the foregoing, it is clear that respondent should be charged with the crime of libel under Article 353, in relation to Article 355, of the Revised Penal Code.

47. The undersigned affiant is executing this Complaint-Affidavit on behalf of complainant Tiger to attest to the truth of the foregoing statements, for the purpose of instituting criminal proceedings against respondent Stephen Wynn for the crime of libel under Article 353, in relation to Article 355, of the Revised Penal Code, and any other applicable crimes as may be determined by this Honorable Office. This is without prejudice to the filing of a complaint under Republic Act No. 10175.

TIGER RESORT, LEISURE AND ENTERTAINMENT, INC.
Complainant

By:

HAJIME TOKUDA
Affiant

---

[15] Yuchengco vs. Manila Chronicle, G.R. No. 184315, November 25, 2009.

CERTIFICATION

SUBSCRIBED AND SWORN to before me this _____ day of December 2012 at Parañaque City.

I hereby certify that I have personally examined the Affiant and that I am satisfied that he voluntarily executed and understood the foregoing Complaint-Affidavit.

Assistant City Prosecutor

1657.10.01
Jcp/Invest Asia/
Complaint-Affidavit Tiger vs. Wynn December 10